

Power of Interest
Whistleblowing Policy

Version: V0.2

Approved by: Maria Fargher

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Review date:

This policy enables staff, volunteers, and others connected to the charity to raise concerns about wrongdoing, risk, or malpractice in a safe and responsible way. It supports our commitment to openness, accountability, and integrity in all our work. The aim is to ensure that concerns are dealt with promptly, fairly, and without fear of victimisation. Investigations will be proportionate to the nature and seriousness of the concern.

What is Whistleblowing?

Whistleblowing means raising a genuine concern about wrongdoing, risk or misconduct that affects or impacts the charity. It is about speaking up when you believe something is happening that could harm:

- The people we work with or support
- Staff
- The charity's reputation, funds or legal obligations
- The wider public interest

Examples could include:

- Someone committing fraud, theft, or misuse of charity funds
- Ignoring serious health and safety risks
- Discrimination, harassment, or abuse being covered up
- Breaches of data protection or confidentiality
- Actions that break the law or go against the charity's values

If you raise a concern honestly and in good faith, even if you turn out to be mistaken, you are doing the right thing.

Scope

This policy applies to all employees, trustees, contractors and any workers. It also applies to any service or beneficiaries, stakeholders or external partners or companies or charities associated with Power of Interest (POI).

Definitions

- **Whistleblowing:** The act of reporting concerns about malpractice, wrongdoing, or risks that affect others, rather than personal complaints.
- **Whistleblower:** A person who raises such a concern in good faith.
- **Malpractice:** Illegal, unethical, or improper conduct that threatens the charity's integrity or the public interest.
- **Protected Disclosure:** A disclosure made in line with the Public Interest Disclosure Act 1998, which provides legal protection to whistleblowers.

- **Members:** The members of the charitable company as defined in the Articles of Association.

Process

Raising a Concern

Concerns should be raised as soon as possible.

- Staff can raise them verbally or in writing to a Director. If your concerns are about or include a Director, you should raise your concerns with the members.
- Non staff can raise them by contacting us through contact@poi.org.uk clearly marking the subject line as Whistleblowing Contact for the attention of a Director or if you believe this member of staff is complicit, the members.
- Concerns relating to the safety or welfare of a child should also be reported immediately to the Designated Safeguarding Lead in accordance with the Safeguarding Policy.
- Anonymous concerns will be considered wherever possible. However, anonymity may make it more difficult to investigate or provide feedback.
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- Deliberately false or malicious allegations may themselves be treated as misconduct.

Acknowledgement and Initial Review:

We will acknowledge receipt within five working days. An initial review will determine whether further investigation is needed and who will lead it. Concerns do not need to be supported by conclusive evidence. A reasonable belief that wrongdoing has occurred, is occurring or is likely to occur is sufficient. We aim to complete investigations as quickly as reasonably practicable.

Investigation:

Investigations will be handled promptly, fairly, and confidentially. The investigator (usually a Director or an independent investigator or professional adviser) will gather evidence, interview relevant parties and produce a report with findings and recommendations. Whistleblowers will be kept informed of progress where possible.

Outcome:

The outcome will be shared with the whistleblower, where appropriate, while maintaining confidentiality. If wrongdoing is found, we will take appropriate corrective action, which may include disciplinary action for employees, termination of a volunteer role, removal of a trustee (where permitted under the Articles), referral to regulatory bodies, e.g. Charity Commission for England and Wales, Companies House, or referral to the police..

External Reporting:

If you believe your concern has not been properly addressed, you may report it to an external body such as the Charity Commission, HMRC, or the police. Independent advice is available from Protect (formerly Public Concern at Work): www.protect-advice.org.uk/. Where appropriate, the charity may also report serious incidents to the Charity Commission.

Protecting the Whistleblower:

Individuals making qualifying protected disclosures under the Public Interest Disclosure Act 1998 may be entitled to legal protection. They will not face dismissal, victimisation or any detrimental treatment. We will make every effort to keep disclosures confidential, although this may not be possible in all cases if a formal investigation is required, however the scope of the investigation and information sharing will always be limited to as few people as possible and a commitment to confidentiality will be required by all involved.

Roles & Responsibilities

It is the responsibility of the Directors that all Directors, employees and volunteers are aware of this policy and that it is accessible to all.

It is the responsibility of the Directors that this policy is accessible to members of the public via our website.

A Director is responsible for managing any process unless the concern is about or includes them.

In this case, the members are responsible for this process. A confidential record of whistleblowing concerns will be maintained, including actions taken and outcomes, in accordance with the charity's Data Protection and Records Retention Policies.

Compliance & EDI:

POI is committed to and upholds equity, diversity and inclusion (EDI). This is reflected in this policy:

- We are committed to ensuring this policy is applied fairly and equitably.
- Whistleblowing procedures must be accessible to everyone, regardless of background, role, or personal circumstances.
- We will provide support and reasonable adjustments for anyone who may face barriers in raising a concern.

Monitoring and Review

The policy is comprehensively reviewed every three (3) years, unless any new legislation in this period requires us to update it.

Approval

Approved by the Board of Directors of Power of Interest UK (POI).

Signed

Name

Date